

25VECV03820 25VECV03820

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-06-30

Motion: DEFENDANT'S DEMURRER TO PLAINTIFFS' COMPLAINT WITH MOTION TO STRIKE

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Case Number: 25VECV03820 Hearing Date: June 30, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

EDUARDO ARGUETA, an individual; and KAREN MELGAR, an individual,

Plaintiffs,

vs.

MARINA

PINK, an individual; and DOES 1 to 100, inclusive;

Defendants.

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CASE

NO: 25VECV03820

[TENTATIVE]

ORDER RE: DEFENDANT'S DEMURRER TO PLAINTIFFS'

COMPLAINT WITH MOTION TO STRIKE

Dept.

I

DATE:

JUNE 30, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: JULY 9, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On July 9, 2025, Plaintiffs Eduardo Argueta (“Argueta”) and Karen Melgar (“Melgar”)(collectively “Plaintiffs”) filed a complaint against Defendant Marina Pink (“Defendant”) and Does 1 to 100 alleging five causes of action: (1) negligence; (2) conversion; (3) defamation per se; (4) labor code violations; and (5) breach of contract.

On May 19, 2026, Defendant filed the instant demurrer to and motion to strike portions of Plaintiffs' complaint.

To date, the demurrer and motion to strike remain unopposed.

II.

LEGAL

STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of

action, the Court admits "all material facts properly pleaded" and "matters which may be judicially noticed," but does not consider contentions, deductions, or conclusions of fact or law. [Citation]." (Blank, supra, 39 Cal.3d at 318.) The Court gives these facts "a reasonable interpretation, reading it as a whole and its parts in their context." (Ibid.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) "If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d 311, 318.)

Before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet and Confer

Defense

counsel states that she emailed and called Plaintiffs' counsel multiple times in connection with the instant demurrer and motion to strike but did not receive a response. (Pink Decl. at ¶¶ 2-5; Exh. A [email correspondence].) Accordingly, the Court finds that Defendant satisfies the meet and confer requirements of CCP §§ 430.41(a) and 435.5(a).

Demurrer

Defendant demurs

to Plaintiff's entire complaint on the grounds that plaintiff fails to state facts sufficient to constitute each cause of action. (See Demurrer at pp. 2-3.)

First Cause of
Action – Negligence

To successfully plead a cause of action for negligence, a plaintiff must allege ultimate facts showing that (1) defendant owed plaintiff a legal duty to use due care; (2) defendant breached that duty; (3) the breach of duty caused plaintiff harm; and (4) plaintiff suffered damages as a result. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318; Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) "Negligence is an unintentional tort, a failure to exercise the degree of care in a given situation . . ." (Donnelly v. Southern Pac. Co. (1941) 18 Cal.2d 863, 869.) "Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty." (Lopez v. S. Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795.) To allege negligence claims, plaintiffs need only state what occurred, and generally that the acts were negligently done, but "need not state the specific act or omission constituting negligent conduct." (Crouse v. Brobeck (1998) 67 Cal.App.4th 1509, 1532.)

Here, Plaintiffs plead that, starting in early 2023, Argueta was an employee of Defendant, performing construction and repair work at her home and another nearby property. (Complaint at ¶ 6.) Plaintiffs allege that, on many days, Argueta worked more than eight hours; some days, Argueta worked more than twelve hours; some weeks, Argueta worked all seven days. (Id. at ¶ 7.) "In the later part of 2024, [Defendant] also made a separate contract with ARGUETA to perform a discrete job, involving construction work, for a separate contractual payment of \$6,500." (Id. at ¶ 9.) "ARGUETA provided his own tools for that work, which he left at the jobsite, [Defendant]'s home, each night with [Defendant]'s consent and agreement." (Id. at ¶ 10.) "On a night in mid-November 2024, after ARGUETA was done with his work and gone for the day, some of his tools were taken from [Defendant]'s house and were never returned. [Defendant] claimed the tools were stolen and that the identity of the thieves was unknown. The value of ARGUETA's tools that were taken was about \$7,600.00. Some other personal property which did not belong to ARGUETA may also have been removed

from [Defendant]'s home." (Id. at ¶ 11.) "[Defendant] made a claim to her insurer for the lost property, including ARGUETA's tools. To support that claim, [Defendant] requested that ARGUETA provide her with receipts from his purchases for some of the tools. ARGUETA did provide [Defendant] with original receipts from some of his tools." (Id. at ¶ 12.) "ARGUETA is informed and believes and thereon alleges that [Defendant] received a payment from her insurer for the lost personal property, including some amount for the value of ARGUETA's tools." (Complaint at ¶ 13.) "[Defendant] did not pay any part of that insurance money to ARGUETA, but retained all of it for herself, including the part of the payment that was for ARGUETA's tools." (Id. at ¶ 14.) "ARGUETA did not learn about the insurance payment immediately, and did not know [Defendant] had money which belonged to him." (Id. at ¶ 15.) "After the November 2024 incident, [Defendant] requested that ARGUETA continue working there, which he did." (Id. at ¶ 16.) "ARGUETA continued his daily work at [Defendant]'s home and also finished the separate contracted work for [Defendant]." (Id. at ¶ 17.) "Although ARGUETA worked at [Defendant]'s request, [Defendant] failed and refused to pay ARGUETA wages for at least 12 days of work." (Id. at ¶ 18.) "[Defendant] also failed to pay ARGUETA the agreed price for his separate contract job which he had completed." (Id. at ¶ 19.)

"Starting sometime after the November 2024 incident at [Defendant]'s home, [Defendant] stated to various people (outside of law enforcement personnel) that ARGUETA, with the assistance of MELGAR, had been stealing from [Defendant] in at least three ways. First, [Defendant] stated that ARGUETA and MELGAR had been using [Defendant]'s credit card to purchase tools which he then kept for himself and claimed as his own. Second, [Defendant] stated that ARGUETA and MELGAR had been stealing money from [Defendant]'s company which was designated for payroll. Third, [Defendant] stated that ARGUETA and/or MELGAR was responsible for, or complicit in, the removal of property from her house in November 2024. [Defendant] did not have any non-speculative basis for any of those accusations, and none of those accusations about ARGUETA or MELGAR were true." (Complaint at ¶ 20.) "[Defendant] made those same accusations about ARGUETA and MELGAR to the Los Angeles Police Department. As a result, on the morning of January 4, 2025, LAPD officers raided ARGUETA and MELGAR's apartment home, and arrested ARGUETA." (Id. at ¶ 21.) "The LAPD officers searched the apartment and found no evidence to support [Defendant]'s claims, or showing any criminal conduct. However, based on [Defendant]'s accusations, ARGUETA was held in jail from January 4 until January 7, 2025, when he was released without any charges ever being

filed.” (Id. at ¶ 22.) “ARGUETA and MELGAR do not make any claim against [Defendant] now based on her false reporting to the LAPD or the results of those false reports.” (Id. at ¶ 23.) “[Defendant] was present at ARGUETA and MELGAR’s apartment building on January 4, 2025, while the LAPD officers were conducting their raid, search and arrest of ARGUETA. During that raid, [Defendant] repeated her statements that ARGUETA and MELGAR had been stealing from her and her company, to ARGUETA and MELGAR’s friends and neighbors.” (Id. at ¶ 24.)

Finally,

Plaintiffs allege that “[b]y allowing ARGUETA to leave his valuable tools at the worksite, [Defendants] assumed responsibility to secure the worksite and the tools reasonably, to avoid theft or damage.” (Complaint at ¶ 29.)

“[Defendants] failed to exercise reasonable care to secure the worksite and ARGUETA’s tools, which allowed those tools to be taken in November 2024.” (Id. at ¶ 30.) “As a direct and proximate result of [Defendants’] negligence, Plaintiffs lost tools valued at approximately \$7,600, according to proof. Plaintiffs also incurred additional losses and damages due to the loss of ARGUETA’s tools and used for his work, and due to the time and additional cost of replacement, subject to proof.” (Id. at ¶ 31.)

Based

on the foregoing, Plaintiffs successfully plead negligence. Specifically, Plaintiffs plead that Defendant owed Plaintiffs a duty of care to reasonably secure Plaintiffs’ valuables, that Defendant breached that duty, that the breach of this duty caused Plaintiffs’ harm by the loss of Plaintiffs’ valuables, and that Plaintiffs suffered damages as a result.

In

her demurrer, Defendant argues that Plaintiffs must have alleged a special relationship to plead a duty of care to Plaintiffs pursuant to Rowland v.

Christian (1968)

69 Cal.2d 108, 113. (See Demurrer

at 5:13-19.) However, Rowland considered a motion for summary judgment and not a demurrer;

additionally, Rowland was subsequently vacated. (See generally Rowland, supra, 69 Cal.2d at 113.) To allege negligence at the pleading stage, plaintiffs

need only state what occurred, and generally that the acts were negligently done, but “need not state the specific act or omission constituting negligent conduct.” (Crouse, supra, 67 Cal.App.4th at 1532.)

Accordingly, Defendant’s demurrer to

Plaintiffs' first cause of action for negligence is overruled.

Second

Cause of Action – Conversion

Next,

to successfully plead a cause of action for conversion, a plaintiff must allege ultimate facts showing (1) the plaintiff's ownership or right to possession of personal property; (2) defendant's disposition of the property inconsistent with plaintiff's rights; and (3) resulting damages. (PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007) 150 Cal.App.4th 384, 395-397; Fischer v. Machado (1996) 50 Cal.App.4th 1069, 1072.) "A general allegation that the defendant 'converted the property to his or her own use' suffices to allege conversion . . ." (Weiss v. Marcus (1975) 51 Cal.App.3d 590, 599.) An action for conversion "rests neither in the knowledge nor the intent of the defendant." (Burlesci v. Petersen (1998) 68 Cal.App.4th 1062, 1066.)

Based on the foregoing, Plaintiffs

successfully allege a cause of action for conversion. Specifically, Plaintiffs allege ownership of tools, valued at approximately \$7,600, Defendant's disposition of the property through their disappearance, and resulting damages. (See discussion of Complaint supra at 5:15-8:4.)

In her demurrer, Defendant provides

a bare argument that "[t]hese allegations fail to establish a conversion cause of action, notwithstanding that the allegations are not true." (Demurrer at 7:3-6.) However, Defendant fails to elaborate or further support her argument.

Accordingly, Defendant's demurrer to

Plaintiff's second cause of action for conversion is overruled.

Third

Cause of Action – Defamation Per Se

Next,

to successfully plead a cause of action for defamation per se, a plaintiff must allege ultimate facts showing (1) the intentional publication by defendant; (2) of statement of fact; (3) that is false; (4) defamatory; (5) unprivileged; and (6) has a natural tendency to injure or that causes special damages. (Taus

v. Loftus (2007) 40 Cal.4th 683, 720; Smith v. Maldonado (1999) 72 Cal.App.4th 637, 645.) Pleadings are not required to allege to whom matters were published, but instead alleging a matter was "published" is sufficient. (Farr v. Bramblett (1955) 132 Cal.App.2d 36, 46.) "Publication need not be to the public or a large group; communication to a single individual is sufficient." (Ringler Associates Inc. v. Maryland Cas. Co. (2000) 80 Cal.App.4th 1165, 1179.)

See discussion of Complaint *supra* at 5:15-8:4. Plaintiffs also plead that Defendant made the "false statements" that Plaintiffs stole from Defendant's property "without knowing whether they were true and without regard for the truth of those statements." (Complaint at ¶ 45.) "When [Defendant] made those false statements, she knew or reasonably should have known that her statements would be injurious and damaging to Plaintiffs." (Id. at ¶ 46.)

Based on the foregoing, Plaintiffs successfully plead a cause of action for defamation per se. Specifically, Plaintiffs plead that Defendant made intentional, false statements to Plaintiffs' neighbors that Plaintiffs stole from Defendant, that such communications were unprivileged, and that have a natural tendency to injure Plaintiffs' reputation. (See Taus, *supra*, 40 Cal.4th at 720; see also discussion of Complaint *supra* at 5:15-8:4; see also Complaint at ¶¶ 45-46.)

Defendant makes various arguments in her demurrer. First, Defendant argues that such statements were privileged since they were made "at the same time and place as the arrest." (Demurrer at 10:12-20; see also Demurrer generally at 7:7-12:10.) However, Plaintiffs specifically plead that their defamation claim does not arise from statements made to the police; instead, Plaintiffs' cause of action arises from the statements made to third parties, such as Plaintiffs' neighbors. (See Complaint at ¶ 42 ["(Defendant) made those statements to individuals who were not involved in law enforcement, out of the presence of law enforcement personnel, and not as part of any official report to law enforcement or any official proceeding authorized by law"].) Additionally, arguments that the statements actually were privileged are for a trier of fact to decide upon the merits and not applicable at the pleading stage.

Based on the foregoing, Defendant's demurrer to Plaintiffs' third cause of action for defamation per se is

overruled.

Fourth

Cause of Action – Labor Code Wage Violations

Next, to

plead a minimum wage violation, a plaintiff must allege that (1) the plaintiff was an employee covered by the applicable Industrial Welfare Commission Wage Order; (2) the employer paid wages at a rate below the applicable minimum wage; and (3) the amount of unpaid wages owed. (See Cal. Lab. Code § 1197.) Additionally, to plead an overtime violation, a plaintiff must allege that (1) the plaintiff was a nonexempt employee; (2) the plaintiff worked hours in excess of the applicable daily or weekly thresholds; and (3) the employer failed to pay the required overtime rate. (See Lab. Code § 510.)

See discussion of Complaint *supra*

at 5:15-8:24. While Plaintiffs plead that Argueta performed “construction and repair work” for Defendant (see Complaint at ¶¶ 6-7), some which were “discrete job[s]” pursuant to separate contracts (see Complaint at ¶ 9), Plaintiffs fail to plead that Argueta was an employee covered by the applicable Industrial Welfare Wage Order or that Argueta was a nonexempt employee. (See Lab. Code §§ 510 and 1197; see also S.G. Borello & Sons, Inc. v. Department of Industrial Relations (1989) 48 Cal.3d 341.)

Based on the foregoing, Defendant’s demurrer to Plaintiffs’ fourth cause of action for labor code wage violations is sustained with leave to amend.

Fifth

Cause of Action – Breach of Contract

Finally,

to successfully plead a cause of action for breach of contract, a plaintiff must allege ultimate facts showing (1) the existence of a contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach or anticipatory breach; and (4) resulting damages. (Wall Street Network, Ltd. v. N.Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178; Armstrong Petroleum Corp. v. Tri-Valley Oil & Gas Co (2004) 116 Cal.App.4th 1375, 1391.) “The plaintiff need only allege the ultimate fact of the making of the contract

by the defendant and himself.” (Pfaff v. Fair-Hispley, Inc. (1965) 232 Cal.App.2d 274, 279.) “Whether parties have reached a contractual agreement, and on what terms, are questions for the fact finder when conflicting versions of the parties’ negotiations require a determination of credibility.” (Hebberd-Kulow Enterprises, Inc. v. Kelomar, Inc. (2013) 218 Cal.App.4th 272, 283.) “In an action based on a written contract, the plaintiff may plead the legal effect of the contract rather than its precise language.” (Ochs v. PacifiCare of Cal. (2004) 115 Cal.App.4th 782, 795.) Pleading a contract by legal effect involves alleging the relevant terms in substance. (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

See discussion of Complaint supra

at 5:15-8:24. Based on the foregoing, Plaintiffs successfully plead a cause of action for breach of contract. Specifically, Plaintiffs plead that Argueta and Defendant made an “oral contract, which was later memorialized through text messages, for ARGUETA to perform construction work for [Defendant] which was separate and discrete from ARGUETA’s usual daily work. ARGUETA and [Defendant] agreed that the price would be \$6,500.” (Complaint at ¶ 57.) “ARGUETA completed all the construction work which the parties had agreed to, and [DEFENDANT] accepted ARGUETA’s work.” (Id. at ¶ 58.) “[Defendant] failed and refused to pay ARGUETA the agreed price for his contract work, without any valid excuse.” (Id. at ¶ 59.)

In her demurrer, Defendant argues

that the oral contract is barred by the statute of frauds because it was “not to be performed within a year from the making thereof.” (See Demurrer at 13:20-14:6.) However, Defendant ignores that the Complaint also alleges that the work was contracted for and commenced in “the latter part of 2024” (see Complaint at ¶ 9) and was completed by January 2025. (Id. at ¶¶ 17-21.)

Accordingly, Defendant’s argument fails.

Based on the foregoing, Defendant’s demurrer to Plaintiff’s fifth cause of action for breach of contract is overruled.

Motion to Strike

The Court now turns

to Defendant’s motion to strike. Defendant moves to strike Plaintiffs’ requests for punitive damages and associated language. (See Motion at p. 2.)

As discussed supra,
Plaintiffs successfully allege causes of action for negligence, conversion, defamation, and breach of contract. These allegations support a showing that Defendant acted with "oppression, fraud, or malice" pursuant to Cal. Civ. Code § 3294(a), particularly as it relates to Defendant's allegedly false allegations of theft. Therefore, Defendant's request to strike punitive damages is denied.

Notwithstanding the foregoing, as
discussed supra, Plaintiffs failed to successfully plead a cause of action for labor code violations. Accordingly, Plaintiffs' request for attorney's fees, and related language, are struck from Plaintiff's complaint.

Leave to Amend

Generally,
the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See *Angie M.*, supra, 37 Cal.App.4th at 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Accordingly,
Plaintiffs are given leave to amend their fourth cause of action for labor code violations and subsequent request for attorney's fees.

IV. CONCLUSION

Defendant's
demurrer to Plaintiffs' first, second, third, and fifth causes of action for negligence, conversion, defamation per se, and breach of contract, respectively, are **OVERRULED**.

Defendant's
demurrer to Plaintiffs' fourth cause of action for labor code violations is **SUSTAINED** with leave to amend.

Defendant's

motion to strike Plaintiffs' request for punitive damages is DENIED.

Defendant's

motion to strike Plaintiffs' request for attorney's fees is GRANTED with leave to amend.

Plaintiffs

to file an amended complaint within 20 days of this order.

Moving

party to give notice.

Dated: June

____, 2026

Hon. Karen Moskowitz

Judge of the Superior

Court